

[646] EASTER TERM, 13 WILL. 3, B. R. 1701.

Sir John Holt, Chief Justice. Sir John Turton, Sir Littleton Powys,
Sir Henry Gould, Justices.

LANE *vers.* SIR ROBERT COTTON AND SIR THOMAS FRANKLAND.

Intr. Pasch. 10 Will. 3, B. R. Rot. 403.

[Referred to, *Bennett v. Bayes*, 1860, 29 L. J. Ex. 227; *Mersey Docks v. Gibbs*, 1866, L. R. 1 H. L. 111; *Bainbridge v. Postmaster-General*, [1906], 1 K. B. 186.]

S. C. Com. 100. 11 Mod. 12. Salk. 17. Holt, 582, with the arguments of counsel, Carth. 487, and very much at large, 12 Mod. 482. Pleadings 2 Mod. Ent. 108.

The head of a public office under Government with power to appoint and remove the servants of the office who are to be paid by, and give at his discretion security to Government is not responsible to an individual for a loss occasioned by the default of such servants. The servant who is guilty of the default, is. The post-master general is not answerable for a packet delivered to the receiver at the post office and lost out of the office. S. C. 5 Mod. 455. R. acc. Cowp. 754. But the receiver is.

The plaintiff brought an action upon his case against the defendants as post-master general, for that, that a letter of the plaintiff's, being delivered into the said office, to be sent by the post from London to Worcester, by the negligence of the defendants in the execution of their office, was opened in the office, and divers Exchequer bills therein inclosed were taken away, ad damnum, &c. Upon not guilty pleaded, this case was tried before Holt Chief Justice at Guildhall in London, and a special verdict found there.

The jury found the Act of 12 Car. 2, c. 35, of the erection of the general post-office, and that a general post was established pursuant to it between London and Worcester: they find the Act of 1 Jac. 2, c. 12, which consolidates the estates in fee and in tail in the said office in the King; that the defendants were constituted post-master general by letters patent of the King that now is, bearing date the first year of his reign under the Great Seal of England, pursuant to the said Act of 12 Car. 2, c. 35, and that by the said patent they had power to make deputies, and to appoint servants, at their pleasure, and to take security of them, but in the name, and to the use of the King, and that the de-[647]-fendants should obey such orders as they should receive from time to time from the King under the sign manual, and as to the management of the revenue, that they should obey the orders of the Treasury, and farther that the King granted to them, that they should not be chargeable, to account for the mismanagement or default of their inferior officers, but only for their own voluntary defaults; and farther the King granted to them the salary of 1500l. per annum out of the profits arising out of the office, &c. that the office was kept in London; that the plaintiff being possessed of eight Exchequer bills, inclosed them in a letter directed to John Jones, at Worcester, and delivered it to Underhill Breese the receiver of the letters at the post office; that Breese was appointed by the defendants to receive the letters at the office, and was removable by the defendants, but received his salary out of the revenue of the said office by the hands of the receiver-general; that the letter was opened in the office by a person unknown, and the bills were taken away; et si, &c.

This case was argued several times at the Bar by Sir Bartholomew Shower, Mr. Northey, and Mr. Pratt, for the plaintiff; and by Serjeant Wright, the Solicitor General Hawles, and the Attorney General Trevor, for the defendants. And now this term the Judges pronounced their opinions in solemn arguments, viz. Turton, Powys, and Gould, Justices, that judgment ought to be given for the defendants: and Holt, that judgment ought to be for the plaintiff.

Gould Justice said, that at first he was of opinion with the plaintiff, and now upon great consideration he had changed it. And he founded his present opinion upon